

3. This Act may be cited as the Royal Naval Reserve Act, 1927, and the Royal Naval Reserve Acts, 1859 to 1902, the Naval Forces Act, 1903, and this Act, may be cited together as the Royal Naval Reserve Acts, 1859 to 1927.

Short title.
3 Edw. 7.
c. 6.

CHAPTER 19.

An Act to provide for a right of appeal by members of police forces who are dismissed or required to resign. [29th July 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) A member of a police force who after the passing of this Act is dismissed or required to resign as an alternative to dismissal may appeal to a Secretary of State in accordance with this Act and the rules made thereunder, if he gives notice of appeal in the prescribed manner and within the prescribed time.

Right of
appeal to
Secretary of
State.

(2) On any such appeal the disciplinary authority shall be made, and is in this Act referred to as, the respondent.

(3) For the purposes of this Act, “police force” means a police force within the meaning of the Police Pensions Act, 1921, that is to say, any such police force as is mentioned in the first column of the Schedule to this Act, and in relation to each such police force “disciplinary authority” means the officer or authority mentioned in the second column of that Schedule.

11 & 12
Geo. 5. c. 31.

2.—(1) The Secretary of State, unless it appears to him that the case is of such a nature that it can properly be determined without taking oral evidence, shall appoint one or more persons (one at least of whom shall be a person engaged or experienced in police administration) to hold an inquiry and report to him.

Decision by
Secretary of
State.

(2) The Secretary of State after considering the notice of appeal and any other documents submitted to him by the appellant and the respondent in accordance with the rules under this Act, and the report (if any) of the person or persons holding the inquiry shall by order either—

- (a) allow the appeal; or
- (b) dismiss the appeal; or
- (c) vary the punishment by substituting some other punishment which the disciplinary authority might have awarded:

Provided that the Secretary of State may before making the order remit the case for further investigation by the person or persons who held the inquiry, or if he thinks fit, for further consideration by the disciplinary authority.

(3) An order made by the Secretary of State under this section shall as soon as it is made be sent to the appellant and the respondent together with, if an inquiry was held, a copy of the report of the person holding the inquiry, and the order shall be final and binding upon all parties.

(4) Where an appeal is allowed, or the punishment is varied by the Secretary of State, the order shall take effect by way of substitution for the decision appealed from, and as from the date of that decision; and where the effect of the order is to re-instate the appellant in the force, he shall, for the purpose of reckoning service for pension, and, to such extent (if any) as may be determined by the order, for the purpose of pay, be deemed to have served continuously from the date of the decision to the date of his reinstatement, and if he was suspended for a period immediately preceding the date of the decision, the order shall deal with such suspension.

Power to
summon
witnesses,
&c.

3. A person holding an inquiry under this Act may by order require any person to attend as a witness and give evidence or to produce any documents in his possession or power which relate to any matter in question at the inquiry, and are such as would be subject to production in a court of law, and if any person fails without reasonable excuse to comply with the provisions

of any such order he shall be liable on summary conviction to a fine not exceeding five pounds, and a person holding the inquiry shall have power to take evidence on oath and for that purpose to administer oaths.

4. The Secretary of State may make rules as to Rules.
procedure on appeals and at inquiries under this Act, and in particular, but without prejudice to the generality of this provision, may make rules—

- (a) prescribing the form and contents of the notice of appeal, and the documents to be submitted by the appellant and the time within which such documents are to be submitted ;
- (b) prescribing the documents to be submitted and the time within which they are to be submitted by the respondent :

Provided that the rules shall provide for giving to the appellant a right to appear at an inquiry by a serving member of a police force or, with the consent of the person holding the inquiry, by counsel or a solicitor, and for giving to the respondent a right to appear by an officer of the police force or by the clerk or other officer of the police authority, or, with the consent of the person holding the inquiry, by counsel or a solicitor.

5.—(1) The Secretary of State may by his order Costs and expenses.
direct that the appellant shall pay the whole or any part of his own costs, but, subject to any such direction being given, all the costs and expenses of an appeal under this Act, including the costs of the parties, shall be defrayed out of the police fund.

(2) Any costs payable under this section shall be subject to taxation in such manner as the Secretary of State may direct.

6. The provisions of this Act shall apply to Scotland, Application to Scotland.
subject to the following modifications :—

- (1) Any inquiry and report in pursuance of section two shall be held and made by the sheriff (excluding the sheriff substitute) :
- (2) The provisions of section seventy-eight of the Burgh Police (Scotland) Act, 1892, and of any 55 & 56 Vict. c. 55.
local enactment in so far as they relate to the

removal, dismissal or suspension of the chief constable of a burgh, or to inquiry into the conduct and efficiency of such chief constable, shall have effect as if references to the sheriff were omitted therefrom, and accordingly so much of the said provisions as applies to the case of a difference of opinion between the sheriff and any other person or body shall cease to have effect.

Short title
and extent.

7.—(1) This Act may be cited as the Police (Appeals) Act, 1927.

(2) This Act shall not apply to Northern Ireland.

Section 1.

SCHEDULE.

POLICE FORCES AND DISCIPLINARY AUTHORITIES.

PART I.

ENGLAND AND WALES.

Police Force.	Disciplinary Authority.
The City of London police force.	The Commissioner of the police force of the City of London or, where the Commissioner is himself the appellant, the Court of Mayor and Aldermen of the City of London.
The Metropolitan police force.	The Commissioner of Police of the Metropolis.
A county police force	The chief constable or, where the chief constable is himself the appellant, the standing joint committee of the quarter sessions and the county council.
A borough police force.	The watch committee.
The River Tyne police force.	The Tyne Improvement Commissioners.

PART II.

SCOTLAND.

A county force.	police	The chief constable or, where the chief constable is himself the appellant, the standing joint committee of the commissioners of supply and the county council.
A burgh force.	police	The chief constable or other body by whom the appellant was dismissed or required to resign or, where the chief constable is himself the appellant, the town council or other body by whom he was dismissed or required to resign.

CHAPTER 20.

An Act to amend the law with respect to customs
in the Isle of Man. [29th July 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) On and from the twenty-fourth day of May, nineteen hundred and twenty-seven, in lieu of the customs duties theretofore payable on wines, there shall, until the first day of August, nineteen hundred and twenty-eight, be charged, levied and paid on wines removed or imported into the Isle of Man, in the case of wines of the description specified in the first column of the table contained in Part I of the First Schedule to this Act and not being Empire products, duties at the rates respectively specified in the second column of that table, and in the case of wines of the description specified in the first column of the table contained in Part II of the said schedule and being Empire products, duties at the rates respectively specified in the second column of that table.

(2) Subsection (2) of section eight of the Customs and Inland Revenue Act, 1890 (which provides that wine

Duties on
wines.

53 & 54 Vict.
c. 8.